

23SMCV01266 23SMCV01266

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Case Number: 23SMCV01266 Hearing Date: July 29, 2026 Dept: N

TENTATIVE RULING

Plaintiff Boyd Kestner's Motion for Reconsideration of Order Denying Motion for Leave to File Second Amended Complaint and Sustaining Demurrer Without Leave to Amend is DENIED.

Plaintiff Boyd Kestner to give notice.

REASONING

Plaintiff Boyd Kestner ("Plaintiff") moves the Court for an order reconsidering the Court's January 12, 2026 order sustaining Defendant Estate of Mark Kornwasser ("Defendant")'s Demurrer to Plaintiff's First Amended Complaint without leave to amend and denying Plaintiff's Motion for Leave to File Second Amended Complaint. Plaintiff argues here that Plaintiff can now present new and different facts that were not presented with the original motion and that could not have been presented earlier with reasonable diligence. Specifically, Plaintiff provides a declaration with the motion, evidence and explanation regarding the actual incident date, evidence showing the purported dangerous condition and subsequent repairs, and identification of new witnesses. The Court notes that Plaintiff's motion is 23 pages long, which exceeds the page limit set forth in rule 3.1113(d) of the California Rules of Court. However, the Court has opted to consider the memorandum in full to dispose of this motion on its merits.

Code of Civil Procedure section 1008, subdivision (a), allows a Court to reconsider a prior order as follows:

When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

The Court initially sustained the demurrer to Plaintiff's First Amended Complaint on the ground that the initial complaint was filed beyond the two-year statute of limitations set forth in Code of Civil Procedure section 335.1, which provides that any action for personal injury must be filed within two years, and the Court also denied Plaintiff's motion for leave to file an amended complaint partly on procedural grounds and partly because Plaintiff's proposed allegation that the incident occurred on September 27, 2020 conflicted with two prior pleadings, an ex parte application representation, and opposition to the demurrer with allegations that the subject incident occurred on September 23, 2020. Plaintiff concedes here that the incident occurred on September 23, 2020. This does not explain in any way how Plaintiff's claim would fall within the statute of

limitations.

As the Court previously stated, assuming Plaintiff has six additional days to allege his claim, as he contends he was unconscious until September 29, 2020, he would be permitted an additional eight days pursuant to Emergency Rule 9, not a full six months to include time before the incident occurred. (*Committee for Sound Water & Land Development v. City of Seaside* (2022) 79 Cal.App.5th 389, 403 [limitations period stops running during the tolling event, i.e., the only time tolled is time after the incident occurs].) Thus, Plaintiff had two years from September 23, 2020 to file his complaint, for a deadline of September 23, 2022, plus an additional eight days from Emergency Rule 9, for a deadline of October 1, 2022, plus an additional six days for incapacity, for a deadline of October 9, 2022, which fell on a Sunday, for a final deadline of October 10, 2022. Plaintiff's complaint was not filed until March 23, 2023. Again, given that Plaintiff's initial pleading was not timely filed, there is no basis to conclude that any of the proposed new claims may relate back properly, as relation back applies only where there is an earlier, timely filed pleading. (*Davaloo v. State Farm Insurance Co.* (2005) 135 Cal.App.4th 409, 415 ["An amended complaint relates back to a timely filed original complaint, and thus avoids the bar of the statute of limitations, only if it rests on the same general set of facts and refers to the same 'offending instrumentalities,' accident and injuries as the original complaint"].)

Insofar as Plaintiff provides evidence of the dangerous condition here, this does nothing to change the Court's initial conclusion. The ruling sustaining the demurrer and denying leave to amend was not based on the merits of Plaintiff's claim on injury; rather, it was clear that Plaintiff's claim fell outside the statute of limitations, and evidence of the condition cannot change that conclusion. Accordingly, Plaintiff Boyd Kestner's Motion for Reconsideration of Order Denying Motion for Leave to File Second Amended Complaint and Sustaining Demurrer Without Leave to Amend is DENIED.